

CORDON

Regione Puglia as operator of the *Xylella fastidiosa* emergency

Decision-grain operating inventory

Sources checked through 25 August 2026

A connected operating model for plant-health enforcement in Puglia

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Bottom line

Scope and cut-off. This is a decision-grain operating inventory, not a general history of the epidemic. It treats the Sezione Osservatorio Fitosanitario as Puglia’s Regional Plant Health Service (RPS), ARIF as its delegated/support executor, and the municipalities, Prefects, Carabinieri Forestali, laboratories, payment bodies and EU institutions as connected actors. Sources were checked on the live web through 25 August 2026. “Annual demarcation update” is a misleading shorthand: the legal clock is **without delay after official confirmation**, while the Region also periodically consolidates zone geometry. The current EU rule is Commission Implementing Regulation (EU) 2020/1201, as amended; the consolidated text used here is EUR-Lex. The national allocation of powers is D.lgs. 19/2021, especially [Article 6](#), [Article 33](#), [Article 34](#) and [Article 55](#).

1. Decision inventory

1.1 Who owns the operating system

D.lgs. 19/2021 makes the regional plant-health services the territorial authorities that apply EU and national plant-health law. Their enumerated duties include official surveillance, responsibility for official analysis, demarcation (after National Phytosanitary Committee opinion), action plans, findings of violations, official prescriptions including destruction, annual information collection, audits of delegated bodies, RUOP/authorisations and notification of newly found pests to the central service ([Article 6](#)). In Puglia that authority is the Osservatorio Fitosanitario.

ARIF is not the policy owner. Puglia’s DGR 570/2023 calls it an **organismo delegato** and assigns support functions for monitoring, prevention, removal, communication and financial-contribution instruction; the same act says the Osservatorio remains the delegating authority and must structure collaboration and oversight ([DGR 570/2023](#)). ARIF itself says its monitoring follows the Osservatorio’s plan and that the plan defines zones, actions, vector work, removal procedures, indemnities, roles and schedule ([ARIF monitoring page](#)).

1.2 Decision-grain table

Decision / action	Accountable owner and executor	Legal / administrative basis	Clock	Required evidence / state	Downstream consequence
Approve the multi-year regional Action Plan, money and delegation envelope	Giunta regionale approves; Osservatorio drafts/ implements; ARIF executes contracted/ delegated work.	EU 2020/1201 Arts. 2-35; D.lgs. 19/2021 Art. 6(i),(q),(r); current plan cited in operative acts is DGR 1075 of 29 July 2025 for 2025-27 (DET 3/2026 recital); prior full plan and convention are DGR 1593/2024 .	EU contingency plan is reviewed as appropriate by 31 December each year ; regional plan runs on its adopted horizon but is amended when outbreaks, science, law or budget change (EU Art. 3).	Zone state, prior campaign results, EFSA survey parameters, vector biology, task/cost plan, ARIF convention, lab contracts, budget chapters.	Creates the executable authority, task division, procurement and funding envelope; subsequent DET acts are applications, not free-standing strategy.

Decision / action	Accountable owner and executor	Legal / administrative basis	Clock	Required evidence / state	Downstream consequence
Design the annual survey and allocate samples	Osservatorio owns risk design and official supervision; ARIF agents/ technicians inspect and sample; designated laboratories test.	EU Arts. 2, 10 and 15 plus Annex V; D.lgs. 19/2021 Art. 6(e),(f), (h),(p),(r); EFSA survey guidelines and Pest Survey Card .	Annual, at biologically appropriate times. Sampling flow must respect daily lab capacity; positives outside demarcated areas require a second molecular test targeting another genome part (EU Art. 2).	Target population; epidemiological and inspection units; zone and subspecies; risk factors; method/ sampling sensitivity; design prevalence and confidence; selected squares/plants; chain of custody; test result and coordinates. The 2022 DG SANTE audit records use of land-register, EU-subsidy, farm-accountancy and aerial-photo data, random 1-ha squares, RIBESS+, and an IT traceability system (2022 audit report).	Generates official negatives/ positives, achieved-confidence evidence, new outbreak/ demarcation triggers, eradication/ containment orders, EU survey return and next campaign's risk map.
Confirm a positive and identify subspecies/ ST	Designated official laboratory performs authorised tests; CNR-IPSP has repeatedly performed confirmation/ characterisation; Osservatorio owns official identification and resulting act.	EU Art. 2(6)-(7), Annex IV; D.lgs. 19/2021 Art. 6(f). Recent prescriptions cite exact CNR/official-lab reports, inspectors and coordinates, e.g. DET 65/2025 .	Operationally immediate; outside a demarcated area, two molecular positives are required before official confirmation. EU outbreak notification is no later than eight working days after confirmation according to the Commission's Xylella developments page .	Sample ID, collection actor/date, coordinates, host species, assay, controls, report date, second molecular test where required, subspecies/sequence type.	Starts the legal clock for demarcation and removal; updates pest status and EU notification; may suspend nursery movement and trigger traceback.
Establish or update a demarcated area	Osservatorio/RPS decides and signs the DET; Commission publishes the Member-State-notified Union list.	EU Art. 4; D.lgs. 19/2021 Art. 6(g),(s). Example: the Osservatorio instituted the Valenzano ST53 area in DET 2/2026 .	Without delay after official confirmation; not merely once a year.	Confirmed plant and subspecies, coordinates, 50-m infected-zone geometry, buffer geometry (normally at least 2.5 km for eradication or 5 km for containment), cadastral/ spatial intersections, legal regime and prior act lineage.	Changes parcel/ plant duties, monitoring intensity, plant-movement rules, replant eligibility, nursery controls and EU-published geography.
Reduce/lift a demarcation or use a derogation	Osservatorio/RPS substantiates; Italy notifies Commission and Member States.	EU Arts. 5-6. The Canosa area was first reduced then lifted after intensive negative surveys and vector tests; DG SANTE found this compliant (2022 audit).	Immediate notification of justification; ordinary lifting after four years without detection, or after 12 months under the narrow Art. 5/6 derogation plus specified confidence tests and two further years of intensive survey.	Negative plant/vector surveys at required confidence/design prevalence, immediate original removal, no spread, dates and area sizes.	Releases movement/land restrictions but creates post-lifting surveillance obligations; weak evidence risks EU rejection/audit finding.

Decision / action	Accountable owner and executor	Legal / administrative basis	Clock	Required evidence / state	Downstream consequence
Choose eradication versus containment for the legally eligible infected zone	EU Annex III defines where containment is legally available; Osservatorio applies the correct branch per area/positive.	EU Art. 12 permits Arts. 13-17 instead of eradication only in an Annex III infected zone. DET 3/2026 expressly applies eradication at Bitonto, not containment.	At demarcation/prescription time; must follow current Annex III and operative regional geometry.	Positive location, current zone-version act, containment eligibility, host/subspecies, 50-m inventory and exceptions.	Determines whether only infected plants are removed (containment) or the broader Art. 7 plant set in the infected zone is removed (eradication). A wrong branch is a legally wrong order.
Issue the parcel/tree-specific removal prescription (DET)	Dirigente, Sezione Osservatorio Fitosanitario.	Eradication: EU Arts. 7-11. Containment: Arts. 13-17. National power: D.lgs. 19/2021 Art. 6(o), Art. 33 and Art. 55(13). A current example with 47 infected plants is DET 173/2025.	EU: immediate after official identification; outside vector flight season, containment removal must occur before the next flight season. Regional DETs define the procedural sub-clocks below.	Lab report; host/subspecies; coordinates; cadastral comune/foglio/particella; owner/holder where known; orthophoto; infected plant and required surrounding plants; regime; monumental/protected status; vector-treatment and destruction method.	Creates enforceable duties, starts notice/election/felling clocks, exposes owner to sanction/cost recovery, creates possible indemnity claim and appealable act.
Identify owners and notify the order	InnovaPuglia/data support links result to cadastral parcel/owner; Osservatorio issues; Comune posts at Albo Pretorio; PEC is used where present; ARIF receives the act.	EU Art. 3(2)(b); D.lgs. 19/2021 Art. 33(2) and L. 241/1990 Art. 21-bis; plan procedure and current DETs. ARIF's official procedure describes the cadastral/owner handoff and publications (ARIF removals/indemnities).	Current DET pattern: Comune posts 7 consecutive natural days ; publication becomes legal notice at day 7; owner has up to 3 days after publication ends to elect voluntary removal or ARIF (DET 173/2025).	Proof of cadastral lookup, owner/holder identity and title, PEC delivery if available, Comune publication start/end certificate, BURP/transparency publication, election through the ARIF SPID portal.	Determines enforceability and appeal period; silence routes the job to ARIF. Bad ownership or publication evidence can delay entry and felling.
Choose voluntary versus substituted execution	Owner elects; ARIF executes when elected, on silence, or forcibly after refusal. Osservatorio/ARIF technicians supervise and certify.	Regional plan/DET procedure; L.R. 19/2019 delegation; D.lgs. 19/2021 Arts. 33 and 55(13). ARIF's official procedure distinguishes voluntary, ARIF and forced removal.	Current pattern: owner communicates within the notice/election window; voluntary removal within 10 days of communication ; ARIF within 10 days of owner communication ; silence -> ARIF within the following 10 days.	Election/portal record, access status, crew assignment, pre-felling vector treatment, plant identity, inspector attendance, root/devitalisation and destruction record, wood disposition, completion date.	Closes the phytosanitary order; creates proof for EU/audit and any indemnity; non-completion escalates to forced access, sanction and cost recovery.
Force access/removal and obtain public-force support	ARIF physically removes; Osservatorio requests; Prefect may provide public force; police forces support.	D.lgs. 19/2021 Art. 33(2) expressly allows the RPS to ask the Prefect for public force where owners oppose access; Art. 55(13) permits coercive execution at the offender's expense (Art. 33; Art. 55).	After refusal/obstruction is documented; urgency remains governed by immediate-removal duty.	Notice validity, access attempt, refusal/third-party obstruction declaration, inspector authorisation, request to Prefect, force attendance, cost ledger.	Entry and felling proceed; removal costs charged to owner; obstruction can double the administrative sanction; DETs may also refer possible criminal offences to prosecutors.

Decision / action	Accountable owner and executor	Legal / administrative basis	Clock	Required evidence / state	Downstream consequence
Sanction non-compliance	Osservatorio/RPS detects, contests and imposes regional administrative sanction; proceeds fund plant-health work.	D.lgs. 19/2021 Art. 55. Failure to execute an infected-plant removal order: €516-€5,000 plus coercive-removal costs; obstruction doubles that sanction (Art. 55(13)). Failure to execute other RPS measures: €1,000-€6,000 (Art. 55(15)). Unregistered operation, passport and movement violations carry separate sanctions (Art. 55(16)-(21)) (full Article 55).	After verified breach; ordinary administrative-offence procedure applies.	Valid prescription, notice, deadline, inspection/non-compliance record, identity, opportunity to respond, coercive-removal cost.	Fine, possible suspension of authorisation for repeated listed violations, cost recovery, enforcement signal and auditable compliance metric. No current public sanction-count series was located: UNVERIFIED.
Order and enforce vector control on all relevant land	Osservatorio sets spatial/seasonal obligations from vector monitoring; every private/public owner, tenant or manager executes; Carabinieri Forestali check; municipalities/provinces manage public areas; public bodies may delegate work to farmers.	EU Arts. 8 and 14; D.lgs. 19/2021 Art. 55(15); regional DETs. The 2025 order required tillage/shredding and assigned control to the Osservatorio using Carabinieri Forestali and aerial imagery (Region 2025 notice).	Windows vary by altitude, weather and vector stage. Example: 2025 low-altitude deadline 15 April; 2026 initially 25 March-30 April below 200 m and 10 April-15 May above 200 m, with €5m support for local governments (2026 regional notice).	Vector-stage/density monitoring, municipality/altitude map, weather/soil practicability, land-manager identity, before/after inspection or aerial evidence, exemptions and treatment records.	Reduces juvenile/adult vector populations; non-compliance produces orders/sanctions and weakens containment. This duty reaches uncultivated land, public green, roadsides, canals and demesne—not just olive farms.
Register/control nurseries and authorise plant passports/sites/movements	Osservatorio registers RUOP operators, authorises passport issuance and production sites, inspects/tests and can suspend movement; operators keep traceability and make movement communications; Carabinieri Forestali assist movement controls.	EU 2016/2031 Arts. 65-95; EU 2020/1201 Arts. 19-27, 32-33; D.lgs. 19/2021 Arts. 6(d),(e),(l), 34 and 55. Puglia provides online RUOP and Xylella movement communication services (services page); DET 48/2024 applies Arts. 18 and 23 (official act).	Registration/authorisation before operation; official inspection/testing as close as practicable before movement; authorised high-security sites receive continuing controls. A 2026 national protocol proposed by Puglia specifies at least two annual inspections plus pre-movement sampling/testing (regional protocol notice).	RUOP ID, site/lot, species/subspecies susceptibility, insect-proof structure, vector traps/treatments, inspection/test results, plant passport, origin/destination and movement notification, one-up/one-down records.	Allows, conditions or blocks production and movement; positive finding triggers immediate block, demarcation, traceback/forward and destruction. EU publishes authorised pest-free sites (Commission list page).
Authorise planting/replanting of specified plants in infected zones	Osservatorio makes the phytosanitary authorisation/rule; operator/landholder plants compliant material. This is distinct from a grant award.	EU Art. 18; Puglia DDS 75/2021 and DET 48/2024. Puglia authorised Leccino, FS17, citrus, peach, plum, apricot, almond and cherry in eligible infected-zone portions (regional authorisation page); DET 48/2024 further governs Art. 18/23 conditions (act).	Before planting/movement; eligibility depends on the current zone and survey history.	Parcel in eligible infected zone; outside the Art. 15(2)(a) containment surveillance strip where required; authorised species/variety; compliant nursery/passport; prior survey evidence; intended movement route.	Legal planting proceeds, or is refused. Planting in breach can trigger a 15-day removal order and €200-€1,200 sanction under D.lgs. 19/2021 Art. 55(14).

Decision / action	Accountable owner and executor	Legal / administrative basis	Clock	Required evidence / state	Downstream consequence
Set and pay felling indemnities	Giunta creates aid regime/method; Osservatorio makes implementing/liquidation acts; ARIF has been responsible for instruction and liquidation of felling indemnities after complete documentation.	Aid law plus regional regime; DGR 994/2024 extended indemnity methodology to olive, almond, cherry and vine, cited by DET 22/2025 . ARIF describes eligible cost/damage/prevention heads and its instruction/liquidation role (ARIF page).	After compliant execution and complete claim; the public sources reviewed do not establish one universal statutory payment clock: UNVERIFIED .	DET/order, beneficiary right/title, completed-removal certificate, species/number, cost and valuation method, complete claim form, aid-cumulation/state-aid checks, bank/tax/antimafia requirements where applicable.	Liquidation, rejection or request for cure; coercive non-compliance may disqualify the owner from contribution under the DET terms.
Administer Article 6 “reimpianto olivi zona infetta” grants	Region sets call, ranks, grants and signs payment determinations through the competent section; ARIF was delegated technical-administrative instruction by DGR 1397/2021.	Interministerial Decree 2484/2020 Art. 6; regional call DDS 377/2020. ARIF confirms its delegated instruction role (ARIF Art. 6 page); the Region’s measure page states resistant varieties, beneficiaries and €40m envelope (Measure 2.B).	Call deadlines, ranked queue, concession, advance, works/variant and final-balance windows set by successive acts—not one permanent clock. In April 2025 the Osservatorio issued a 16th advance-liquidation determination (regional notice).	Eligible zone/parcel and prior olive use, title/possession, applicant type, resistant cultivar and planting plan, costs/area, ranking score, DURC, antimafia and payment evidence, completion/variant documents.	Admission, ranking/scorimento, concession, advance, final payment, variant, subentry, revocation or recovery. This money workflow must not be conflated with phytosanitary permission under EU Art. 18.
Report to Rome/ Brussels and sustain audit	Osservatorio compiles regional evidence and notifies the central plant-health service; Italy transmits to Commission/Member States; Commission/DG SANTE audits.	D.lgs. 19/2021 Art. 6(p),(q),(s); EU 2020/1201 Art. 35 and Annex V; EU 2016/2031 Arts. 18 and 22.	New confirmed outbreak: no later than 8 working days (Commission summary). Annual measures/results report: 30 April for preceding year. Demarcation derogations/lifting and positives in Art. 15(2)(a) locations: immediate notification (EU Arts. 4–6, 35).	Annex V survey return: initial/updated area, eradication/containment approach, zone, sites, timing, target population, units, detection/sensitivity, risk factors, inspections, samples/tests, positives/negatives/undetermined, outbreak notification IDs, achieved confidence/design prevalence; vector return has traps/captures/tests/results.	Commission updates Union demarcated-area list, PAFF oversight, audit/infringement exposure and future legal changes.

2. EU-facing obligations and audit findings

2.1 The regional evidence that must reach Brussels

- 1. Outbreak notification.** Official confirmation, host, subspecies, location, scale and measures must pass from the Osservatorio to the national service and EU notification system. The Commission says a positive finding is reported within eight working days ([Commission developments](#)).
- 2. Demarcation notification.** New/updated/lifted areas and any use of Art. 5–6 derogations require the geometry, act, date and scientific justification. The Commission publishes the Union list from Member-State notifications ([EU Art. 4](#); [current Union list](#)).
- 3. Annual survey/results return.** By 30 April, Italy must report prior-year measures and results under Arts. 2, 4, 5, 7–18 and 32; demarcated-area plant and vector surveys use Annex V templates ([EU Art. 35/Annex V](#)). The Osservatorio therefore needs data at the grain of zone-version × survey stratum × site type × host × method × result, not a regional total.

4. **Traceback/forward communication.** For eradication outbreaks, origin and associated moved host plants must be investigated and results communicated to Commission and affected Member States (EU Art. 11). Nursery lot/passport/movement data are therefore part of emergency evidence, not merely commercial regulation (EU regulation).
5. **Auditability of delegation.** D.lgs. 19/2021 makes the RPS responsible for auditing delegated official-control/official-activity bodies (Art. 6(q)). Puglia must therefore evidence not only what ARIF did, but the authority, instructions, supervision, exceptions, corrective action and performance of the delegation.

2.2 DG SANTE audit lineage and findings

The Commission's live audit database returns Xylella-specific Italy audits in 2014 (two), 2015 (two), 2016, 2018, 2019, 2021 and 2022. The latest dedicated report located is **DG(SANTE) 2022-7401**, audit June 2022, published 3 March 2023 (record; report). Earlier relevant reports are 2021-7280, 2019-6731 and 2018-6485.

What the audits say, in operating terms:

- **2018: removal system failure.** In the 2017 campaign's 20-km containment strip, only **10.7% of more than 3,000 positive olive trees** had been removed by the audit. The Commission attributed delay to protected-area authorisations, court appeals, difficulty identifying owners and shortages of administrative capacity; the buffer/barrier function was compromised (2018 report).
- **2019: backlog persisted despite a new 33-day workflow.** Of 366 infected trees confirmed in the infected zone and 165 in the 20-km strip, only 160 and 52 respectively had been felled by audit time. The new procedure allowed up to 13 days for public notice, 10 for owner removal and another 10 for ARIF. A prosecutor's seizure of CNR-Bari laboratory material/equipment from 3 May to 5 June 2019 stopped molecular confirmation and added to the positive/ambiguous ELISA backlog (2019 report).
- **2021 audit: improved but still considerable delay and weak compliance.** The audit said Apulian removal delays were significantly reduced but still created pronounced spread risk, especially in vector flight season. It also found a high number of non-compliances with mandatory vector controls. At national level, lack of coordination and proficiency testing among authorised regional laboratories created a false-negative risk, and the then-current national contingency plan was obsolete/not legally binding (2021 report).
- **2022 audit: major acceleration, with remaining survey/data defects.** Organisational changes yielded removal on average **19 days after final lab result and 31 days after sampling**; area totals averaged 26-34 days, with observed ranges up to 70 days. Felling orders were prepared within five days of confirmed result; municipal publication, owner election/removal and ARIF substitution were explicitly managed. DG SANTE concluded most confirmation-to-removal intervals were within the technically/legal minimum (2022 report).
- **2022 compliance result.** Carabinieri Forestali completed 6,664 checks in demarcated areas with **92.5%** correct implementation and 1,865 checks outside them with **91.7%** compliance; both control volume and compliance had nearly doubled from earlier figures. But surveys omitted some risk factors (symptomatic plants and previously sampled-plant information), pooling added 5-10 days to positive confirmation, and monumental olives in Polignano a Mare were not sampled in 2021 as required (2022 report).
- **Systemic EU judgment.** In Case C-443/18 the Court of Justice held that Italy failed to ensure immediate removal of infected plants in the containment strip and failed to ensure annual monitoring at appropriate times; it rejected the Commission's broader allegation of a general/persistent failure because causation and each alleged infringement were not proven (judgment). This is the precise finding—not a holding that every aspect of Italy's response was unlawful.

3. Documented operational pain, with numbers

3.1 Positive-to-felling backlog and the clock problem

The historical failure was not "lack of a map"; it was loss of elapsed time at each handoff: sampling → screening → confirmatory lab → owner/parcel resolution → DET → public/PEC notice → owner election → crew/access/vector treatment → felling/destruction. The numbers above show the progression from 10.7% removal of >3,000 positives in

2018, to 160/366 and 52/165 removed by the 2019 audit, to a 2021 average of 31 days sampling-to-felling under the redesigned process (2018; 2019; 2022). A common operating picture must retain each timestamp and blocking reason; “open/closed” destroys the diagnostic value.

3.2 Appeals and legal constraints

Growers’ challenges led the Lazio TAR to suspend eradication measures and refer the validity question to the CJEU; a separate criminal seizure blocked removals until July 2016. The CJEU then upheld the validity of removing host plants around infected plants under the precautionary/proportionality principles (C-78/16 and C-79/16). DG SANTE’s 2018 audit still found court appeals, owner identification and protected-land procedures delaying removals (2018 report). D.lgs. 19/2021 later gave explicit publication/access/public-force machinery (Art. 33).

Recent litigation remains operationally relevant. A July 2025 TAR interim order reportedly suspended removal of a vineyard within a 50-m eradication radius pending merits; only press accounts were located, so the case number, ultimate outcome and elapsed delay are **UNVERIFIED** (Telenorba report). The live system therefore needs a parcel/order-level “stay/appeal” state linked to the court order, not a narrative note.

3.3 Laboratory and inspector/crew capacity

- The 2019 CNR seizure created a complete confirmatory-testing interruption for about a month (2019 audit).
- In 2021/22, sample dispatch was deliberately paced to available daily laboratory capacity; pooling increased throughput but added **5-10 days** on average to positive confirmation (2022 audit).
- The 2022 audit warned that Italy’s national contingency plan did not ensure regions would make the minimum resources available for future outbreaks (2022 audit).
- **Current numeric headcount, crew capacity, per-lab daily assay capacity and inspection vacancy data were not found in the public sources reviewed: UNVERIFIED.** These are essential capacity inputs and should be requested rather than inferred from sample totals.

3.4 Compliance and enforcement coverage

The strongest official compliance measure found is the 2021 CUFAA result: 92.5% in demarcated areas and 91.7% outside, based on 8,529 checks. It shows substantial improvement, but not universal compliance, and says nothing by itself about representativeness because sites were risk-selected (2022 audit). The public record reviewed does not expose a current linked series of obligations issued, inspections, breaches, notices cured, sanctions final, coercive removals and amounts recovered: **GAP**.

3.5 Budget cliff versus actual capacity cut

DGR 570/2023 showed autonomous-budget Xylella allocations of **€3.62m (2023), €4.02m (2024), €2.92m (2025)**, €10.56m total (DGR 570/2023). DGR 1593/2024 later presented plan resources of approximately **€10.624m (2024), €2.77m (2025), €1.95m (2026)**—a nominal drop of 73.9% and 81.6% from the exceptional 2024 figure—and added/reprogrammed €1.513m in bound surplus (DGR 1593/2024). The Region simultaneously described the three-year plan as “over €15m” and a concentration of human/economic resources in a narrower surveillance strip (regional release).

Interpretation: the published profile is an allocation cliff, but it is **not proven to be a like-for-like cut to field monitoring**, because 2024 includes exceptional/reprogrammed resources and chapters combine several activities. Treat “monitoring budget cut” as **PARTLY VERIFIED** until line-item commitments, carry-forwards, ARIF contracts and lab procurements are reconciled by year.

3.6 Grant/payment backlogs and control friction

ARIF reported in July 2022 that 965 Article 6 applicants had completed positive technical-administrative instruction for **€21.95m**, while it was also processing 4,646 2018 and 3,848 2019 damage-indemnity applications—nearly 8,500 legacy cases (ARIF release). The Region later acknowledged that DURC and antimafia certificates objectively slow

grants and that it sought massive rather than one-by-one INPS DURC requests ([regional status release](#)). Successive “16th advance,” scorrimento, concession and liquidation acts into 2025–26 show a long-lived queue, not a single award event ([Measure 2.B](#)).

3.7 Fraud/irregularity allegations: do not promote them to fact

Press reports in late 2025 attributed to an internal AGEA cross-check an alleged €18.8m paid among roughly 2,500 positions with no detected plants and many closed/deceased files. No public AGEA report, GdF case release, charge, audit decision or judgment supporting those exact figures was located. The numbers are therefore **UNVERIFIED allegations**, not findings. The operational implication is still valid: benefit, parcel, crop, enterprise/death status, duplicated aid and field evidence require cross-system controls. In June 2026 press reported a Region-GdF extension of preventive controls to Xylella measures, monitoring and aid, but an official signed protocol text was not located in this search ([BariToday](#)).

3.8 Corte dei conti: bounded negative

A dedicated Corte dei conti performance audit of Puglia’s Xylella operating chain was **not located** in the live Corte catalog/searches performed. The Court’s Puglia parification materials contain broad recommendations on slow EU-fund payment and regional monitoring, but those are not Xylella-specific and should not be cited as if they audited this emergency ([2024 parification document](#)). This is a **NOT FOUND**, not proof that no such audit exists.

4. What the common operating picture must answer every day

The authority does not need one dashboard. It needs a linked clock-and-evidence picture that answers these live questions:

Outbreak and legal geography

1. Which samples became officially positive today, which still need second-test/subspecies confirmation, and how old is each lab queue item?
2. For each positive, what exact **zone-version act** and Annex III status applied at the time? Is the parcel under eradication, containment, buffer or free-area rules?
3. Has the 50-m infected zone and the correct buffer been computed, reviewed and published? Which cadastral parcels intersect even partially?
4. Is there a newer positive that requires immediate enlargement, merger or replacement of a demarcated area? Has Rome/Brussels been notified?
5. Which areas are candidates for reduction/lifting, and do they actually meet every negative-survey/vector/confidence/time condition?

Survey and laboratory control

1. Against the approved statistical design, how many epidemiological units, plants, nurseries, public sites and vector sites are planned, visited, sampled, tested and unresolved by zone/risk/host/method?
2. What confidence/design prevalence has actually been achieved—not merely planned—and which risk strata are under-covered?
3. Are symptomatic plants, previously sampled plants, nurseries, transport corridors, monumental groves, abandoned orchards and the first 400 m represented correctly?
4. What is each laboratory’s daily capacity, backlog, indeterminate/retest rate, turnaround distribution and proficiency status? Is sampling being throttled to avoid a felling-delaying lab surge?
5. Can every result be traced to collector, plant coordinates, chain of custody, method, controls, report and any confirmatory/subspecies result?

Removal clock and enforcement

1. For every positive and every required surrounding plant, what is the elapsed time from sample → confirmed result → DET signed → Comune/PEC notice → owner election → access → pre-treatment → removal/destruction?
2. Who owns/holds each affected parcel; what evidence supports that identity; did the Comune complete seven consecutive days of publication; is PEC proof present?
3. Did the owner elect voluntary removal, ARIF, or remain silent? Which 10-day clock is running? Which ARIF crew and inspector are assigned?
4. Which jobs are blocked by protected/monumental status, inaccessible terrain, wrong owner, third-party obstruction, weather, contractor/crew shortage, court stay or missing Prefect support?
5. Was vector treatment applied before felling where required? Were roots removed/devitalised and branches/leaves destroyed correctly? Is completion evidence sufficient for EU audit and indemnity?
6. Which breaches are cured, contestable, sanctioned, coercively executed, referred to police/prosecutor or awaiting cost recovery?

Vector control and public land

1. What vector stage and density are observed by altitude/climate area, and what treatment window should be opened, extended or closed?
2. Which private farms, abandoned parcels, municipal greens, road/rail margins, canals and demesne are obligated, exempt, inspected, compliant or overdue?
3. Are Comune/Province/infrastructure-manager work plans funded and complete? Does aerial evidence agree with field inspection?
4. Is low compliance clustered by actor, land class or municipality, and is enforcement aimed where spread risk is greatest?

Nurseries and movement

1. Which RUOP operators and production sites are authorised, suspended or due for inspection? Which structural/vector-control deficiencies are open?
2. Which lots of specified plants are awaiting pre-movement testing/passport/movement communication, and does the route cross infected/buffer boundaries lawfully?
3. For a nursery positive, what lots, suppliers, customers and Member States are in traceback/forward; which plants remain untraced?
4. Are planting permission, plant movement permission and grant eligibility being kept as three separate decisions?

Money, capacity and accountability

1. For each felling indemnity and Article 6 grant, what are eligibility, instruction, DURC/antimafia, concession, advance, works, inspection, final payment, recovery and appeal states—and who owns the next action?
2. Do parcel/crop/beneficiary/death/enterprise/payment records agree across regional systems, ARIF and the relevant paying body? Are duplicate or incompatible aids blocked?
3. What money is appropriation, commitment, contract, certified work, liability, payment or recovery? How much field/lab/crew capacity does each euro buy this month?
4. Are ARIF/lab/Carabinieri/Comune delegations meeting service levels, and has the Osservatorio performed the legally required audit/corrective action?
5. Is the 30-April EU return complete at Annex V grain; do outbreak/demarcation notifications reconcile to regional acts, lab reports and current GIS?
6. What would an EU auditor be unable to prove from today's evidence package?

5. Unknown-unknown sweep

Missed actor/duty/data source	Why it belongs in the operating model	Verified state / gap
Civic/public land managers (Comuni, Province, road/rail operators, canal/demesne managers)	Vector duties attach to public and uncultivated surfaces, not only farmers. Public entities can delegate work to farmers.	Verified in 2025 and 2026 regional notices. Asset-owner/work-order data are not exposed as one public dataset: GAP .
Comune as legal-notice operator	Its Albo start/end certificate is a control point in the removal clock, not passive communication.	Verified in current DETs such as DET 173/2025 . Cross-Comune publication evidence/API: GAP .
Prefect and public force	They resolve access obstruction; delay here leaves a confirmed inoculum source standing.	Explicit national authority in D.lgs. 19/2021 Art. 33 . Request/response-time series: GAP .
Carabinieri Forestali/CUFAA	Controls plant movement and mandatory vector practices; its sampling frame determines what "compliance" means.	Verified by DGR 570/2023 and 2022 EU audit . Current microdata: GAP .
Nursery/garden-centre and online movement surveillance	Plants for planting are the long-distance pathway. RUOP, authorised sites, passports, tests, movement notifications and traceback must be linked.	Verified by EU Arts. 19-27 and Puglia's RUOP/movement services . Current 2026 protocol details are in a regional notice .
Official-laboratory governance and proficiency	A false negative or confirmation backlog changes legal geography and removal speed.	2021 DG SANTE found coordination/proficiency weakness; 2022 found capacity-aware scheduling and 5-10-day pooling penalty (2021; 2022). Current per-lab SLA/proficiency: GAP .
InnovaPuglia/cadastral and geospatial handoff	It turns a positive point into parcels/owners, publication lists and work packages. A bad join creates delay or wrong-person notice.	ARIF's official workflow identifies InnovaPuglia as the cadastral/owner data provider (ARIF procedure). Match quality and exception queue: GAP .
Monumental/protected-tree decision	Eradication Art. 7 allows tightly conditioned derogation for negative valuable trees; infected plants in containment are not generally saved by regional preference. Landscape authorisation may still matter for negative monumental removals.	EU Arts. 7(3), 13(2); national Art. 33 . Inventory of derogated trees, annual tests and treatments: GAP .
Abandoned orchards/incubators	No active farmer may exist to perform vector control; ownership/access and public substitution become the constraint.	Region identified unmanaged almond orchards as the next Triggiano problem after >50,000 samples and >30 ha of vines removed (2026 release). Regional abandoned-parcel register: UNVERIFIED .
Scientific advisory bodies (regional CTS, National Phytosanitary Committee, EFSA, CNR/CREA)	They shape survey design, resistant/tolerant planting lists, vector timing and demarcation opinion; advice must be versioned separately from the binding act.	Verified in D.lgs. 19/2021 Art. 6 , EFSA guidance and regional plan releases. Public recommendation-to-decision ledger: GAP .
Aid/payment integrity actors (regional section, ARIF, AGEA/regional paying body, INPS, antimafia databases, GdF)	Eligibility and payment are multi-system decisions. Death/closure, duplicate aid, crop/parcel mismatch and incomplete work are distinct exception types.	ARIF/Region workflows are verified; exact 2025 AGEA anomaly figures remain UNVERIFIED without the alleged report.
Appeal/stay register	A legally stayed order is not the same as owner refusal, crew delay or completed removal; it needs its own clock and document.	Historic impact verified by EU audits and CJEU cases. No complete public Xylella appeal/order/outcome register was located: GAP .
Insurance / Fondo di solidarietà nazionale	Income-loss compensation, felling indemnity, replant grant and insurance/solidarity relief have different loss events and anti-double-funding rules.	National/region sources show multiple measures, but a unified beneficiary-level cumulation rule/data view was not located: GAP .
Mortality/landscape restoration versus official infection	Dead/dry canopy is not the official diagnostic label. Mixing mortality, symptoms, positive tests, removed plants and replanted hectares corrupts both science and payment control.	EU law bases measures on official test/defined plant categories; Puglia publishes monitoring data/dashboard (regional dashboard release). Data products should keep these outcomes separate.

6. Source list

Primary EU law, judgments and oversight

- Commission Implementing Regulation (EU) 2020/1201, consolidated 17 October 2024
- Commission Xylella developments and notification summary
- Union list of demarcated areas
- EFSA statistically sound/risk-based survey guidelines
- EFSA Xylella Pest Survey Card
- CJEU C-443/18, Commission v Italy
- CJEU joined cases C-78/16 and C-79/16, Pesce and Others
- DG SANTE Italy audits: 2018-6485, 2019-6731, 2021-7280, 2022-7401, and 2022 audit record/action-plan links

National law

- D.lgs. 19/2021: Article 6—regional services; Article 33—emergency measures/access/public force; Article 34—RUOP; Article 55—sanctions

Puglia acts and operator sources

- DGR 570/2023: plan integration, ARIF/Carabinieri conventions and budgets
- DGR 1593/2024: 2024-26 plan, ARIF convention and resource profile
- DET 2/2026: Valenzano outbreak/demarcation
- DET 3/2026: Bitonto eradication prescription
- DET 173/2025: current removal/notification/execution procedure
- DET 48/2024: planting and movement under EU Arts. 18/23
- DET 22/2025: indemnity implementation/liquidation
- ARIF monitoring role
- ARIF removal, notification and indemnity procedure
- ARIF Article 6 delegation
- Puglia Measure 2.B / Article 6
- Puglia planting authorisation summary
- Puglia agriculture online services/RUOP/movements

Secondary/press sources used only where marked

- Telenorba, July 2025 interim TAR suspension report—case details/outcome marked UNVERIFIED.
- BariToday, June 2026 Region-GdF protocol report—signed protocol text not located.

Bottom line

The Osservatorio's decisive product is a **legally versioned, evidence-complete, clocked work order**: an official result becomes the correct zone/regime, the correct plants and owners, valid notice, a voluntary or ARIF job, controlled destruction, enforcement/payment state and an EU-reportable evidence package. ARIF is the execution engine, not the legal decision maker. The historical operational failure was elapsed time and lost handoffs; the modern risk is fragmentation across lab, GIS/cadastre, municipal notice, crew/access, vector compliance, nursery movement, grants and EU reporting. A common operating picture must preserve those separate decisions and clocks while linking them to the same plant, parcel, zone-version, actor and source act.